

Rajitha vs Sajeevan.K on 17 November, 2016

Author: A.M.Shaffique

Bench: A.M.Shaffique

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE A.M.SHAFIQU
&
THE HONOURABLE MR. JUSTICE K.P.JYOTHINDRANATH

THURSDAY, THE 16TH DAY OF NOVEMBER 2017/25TH KARTHIKA, 1939

Mat.Appeal.No. 1216 of 2016 ()

AGAINST THE ORDER/JUDGMENT IN OP 279/2015 of FAMILY COURT,ERNAKULAM
DATED 17-11-2016

APPELLANT(S):

RAJITHA
AGED 30 YEARS, D/O.P.CHANDRAN, RAJITHA BHAVAN,
AMBANATTU ROAD, THEKKUMBHAGOM,
THRIPUNITHURA, ERNAKULAM DIST- 682 301

BY ADVS.SMT.GISA SUSAN THOMAS
SMT.G.ASHWINI
SRI.SUNNY MATHEWS
SRI.BABU KARUKAPADATH
SMT.M.A.VAHEEDA BABU

RESPONDENT(S):

SAJEEVAN.K
AGED 35 YEARS, S/O C.H.GOPALAN
HARI VIHAR, KARAKUNNU, KEEZHARA P.O
CHERUKUNNU VIA, KANNUR DIST- 670 301
AT PRESENT WORKING AS ASSOCIATE PROFESSOR,
P.E.S. ENGINEERING COLLEGE, ELECTRONIC CITY,
HUSUR ROAD, BANGALORE

R1 BY ADV. SRI.ALEX.M.SCARIA
R1 BY ADV. SMT.SARITHA THOMAS
R1 BY ADV. SMT.NISNA K.MUHAMMED

THIS MATRIMONIAL APPEAL HAVING BEEN FINALLY HEARD ON 21-8-2017, ALONG WITH MA. 1217/2016, RPFC. 598/2016 & RPFC. 24/2017, THE COURT ON 16/11/2017 DELIVERED THE FOLLOWING:

A.M. SHAFFIQUE & K.P.JYOTHINDRANATH, JJ.

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Mat.Appeal Nos. 1216/2016, 1217/2016,
RP(FC) No.598/16 & 24/2017
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Dated this, the 16th day of November, 2017

J U D G M E N T

Shaffique, J.

Mat.Appeal Nos. 1216/16 and 1217/16 have been filed by Rajitha, W/o Sajeevan. Appeals have been filed challenging common judgment dated 17/11/2016 in OP Nos.279/2015 and 217/2015. RP(FC) No.598/16 has been filed by Rajitha challenging judgment dated 17/11/2016 in MC No. 153/14 which is also part of common judgment dated 17/11/2016. Sajeevan has filed RP(FC) No. 24/2017 limiting his challenge to the judgment dated 17/11/2016 in MC No.153/14.

2. The facts involved in the above matters are common in nature and to state in brief are as under. Parties are referred to as shown in OP No.279/15.

3. All the three petitions had been filed by the petitioner. OP No.279/15 had been filed seeking for divorce. OP No.217/15 is filed Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 for recovery of money and MC No.153/14 has been filed for maintenance.

4. The marriage between the petitioner and 1st respondent was solemnized on 26/10/2013 as per Hindu religious rites and ceremonies. Respondent at the relevant time was working as Associate Professor in an IT firm in Bangalore. According to the petitioner, at the time of marriage, her parents had given her 80 sovereigns of gold and `5 lakhs as paternal share. The gold ornaments as well as the money were entrusted with the respondent. On the first night of marriage, it is alleged that the petitioner was subjected to mental harassment by the respondent. Though the respondent was having a bald head, he was using a wig which was concealed from the petitioner. After one week of the marriage, respondent visited the house of the petitioner at Tripunithura and a reception was conducted by spending `6,72,000/-. To enable the respondent to purchase an apartment and for booking a new car, petitioner's father had given `5 lakhs to the respondent. Respondent proceeded to Bangalore on 4/11/2013 and did not return. Petitioner along with her parents went to Bangalore

on 17/1/2014. But, the respondent Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 did not communicate to them in any manner. However, on the advice of respondent's sister, the parties went for counselling and conciliation, but, nothing turned out. She alleges that, on 28/4/2014, he had uploaded his profile stating that he is unmarried and was seeking suitable alliance. She alleges that the respondent had deserted her for more than one year with an intention to cease cohabitation permanently which had caused depression and frustration on her. Hence, she sought for divorce. On the very same allegations, it is contended that, an amount of `14,61,000/- was expended by her parents for conducting marriage and an amount of `5 lakhs was entrusted to the respondent on the date of marriage, and a further sum of `5 lakhs on 4/11/2013. The relief sought for was for recovery of the marriage expenses and also for return of `5 lakhs which was entrusted at the time of marriage and a further amount of `5 lakhs which was entrusted to the 1st respondent for paying advance to buy an apartment and vehicle at Bangalore. It is alleging that he was having a monthly salary of `75,000/- per month, she sought for a decree for maintenance @ `30,000/- per month.

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5. Common evidence was taken in all these cases. Petitioner relied upon oral testimony of PWs 1 to 3 and relied upon Exts.A1 to A13 documents. Respondent examined RW1 and RW2 and relied upon Exts.B1 to B4. The Family Court dismissed OP Nos.279/2015 and 217/2015 and allowed MC No.153/14 directing the respondent to pay monthly maintenance @ `5,000/- to the petitioner.

6. While dismissing the petition for divorce as well as petition for return of money, the Family Court observed that the allegation of cruelty has not been proved and the other allegations made out cannot be a reason for grant of divorce. In respect of recovery of money as well, the Family Court observed that there is no evidence forthcoming to prove entrustment of `5 lakhs at the time of marriage, `5 lakhs after the marriage and for expending `14,61,000/- for the marriage ceremony. On a finding that the claim is inflated and exaggerated, the petition was dismissed. While deciding the claim for maintenance in MC No. 153/14, it was observed that the petitioner was a person who was born with silver spoon in her mouth and her father being an employee in Bharat Petroleum Corporation Limited, she was Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 brought up like a queen in the midst of prosperity and in the said circumstances it was found that the claim was exorbitant, which cannot be borne by the respondent and accordingly directed payment of `5,000/- as maintenance.

7. First, we shall consider MA No.1216/16 arising from OP 279/15. The Original Petition was filed for divorce under S.13(1)

(a) of the Hindu Marriage Act, 1955. Section 13(1)(ia) reads as under:-

"13. Divorce (1) Any marriage solemnised, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party-

(i) xxxx (ia) has, after the solemnisation of the marriage, treated the petitioner with cruelty; or"

There is no dispute about the legal proposition that for grant of divorce on the ground of cruelty, either physical or mental, the allegations of cruelty are to be specifically pleaded and proved. Proof of course depends upon preponderance of probability. This is a curious case in which the couple remained together only for a few days. In the petition for divorce, the specific allegation is that the marriage was solemnized on 26/10/2013. Pursuant to the Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 marriage, couple stayed at the matrimonial home for a few days and in the first night itself, it is alleged that she was subjected to mental harassment by the respondent by disclosing that he was not interested to marry the petitioner and he was trapped by his brother Mr.Jinu. It is alleged by her that respondent stated that he wants to live as a free bird and does not want to stick on to one person alone. She also alleges that he was having a bald head and was using a wig, which fact was concealed prior to marriage. It is also alleged that a reception was held at Pushpanjali Auditorium, Tripunithura after one week of the marriage. The respondent went to Bangalore on 4/11/2013. Thereafter, he abstained from contacting her and he did not attend her calls. Whenever she gets a connection, he was giving evasive answers. Ultimately, she and her parents proceeded to Bangalore on 17/1/2014. He did not react properly to their visit and she was abused while in the presence of her parents. Siblings of the respondent compelled him to undergo counselling. The respondent and his relatives, petitioner and her parents went for counselling and conciliation. But there was no feed back from the counsellor as the respondent was too adamant to have any Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 relationship with the petitioner. Though another conciliation took place, the same was also in vain. He thereafter started uploading his profile in the website soliciting marriage alliance from suitable young girls. It is alleged by the petitioner that by contracting the marriage with the petitioner, respondent had spoiled her life and it amounts to deception. He was not interested in the marriage and he was harassing the petitioner. The aforesaid action of his amounts to cruelty. His only intention was to experience young girls by tying nuptial knot and throwing away upon satisfying his lust. He has cheated her wilfully concealing the bald head and by leaving her on her own. It is also contended that the money entrusted to him was misappropriated.

8. In the objection filed by the respondent, he contended that the petitioner had informed him that she was not interested in the marriage since he was having a bald head and only since her father threatened to commit suicide that she had agreed for the marriage. He therefore informed his relatives and the father of the petitioner. After the petitioner had come to the matrimonial home, she stated that she cannot share the room with the respondent and that she wanted to marry her WhatsApp friend Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 one Shihab. She also told him that she cannot enter into any sexual relationship with the petitioner. Since he was very much surprised and astonished by the action of the petitioner, he left to Bangalore on the same day. He therefore denied the allegations raised by the petitioner. Though he agreed that a reception was conducted on 2/11/2013, when they came back to the petitioner's house, everyone was behaving to him as if he is a stranger and petitioner even asked him to go away from her room. Therefore, he went to Bangalore on the same day. He denies having a conciliation talk in January, 2014. However, he had gone for counselling and since she stated that she cannot live with a person having bald head,

the counselling ended in failure.

9. While examined as PW1, in the affidavit in chief, she reiterated the very same allegations. In cross examination, she stated that they lived together for six days and they had sexual relationship during the said period.

10. PW2 is the father of petitioner. He also has given evidence in support of his daughter.

11. PW3 is the uncle of the petitioner. He was examined to prove the payment of `5 lakhs, 80 sovereigns of gold Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 ornaments given at the time of marriage and also payment of further amount of `5 lakhs as an advance for buying an apartment and for booking a brand new car.

12. Respondent was examined as RW1. He had filed chief affidavit in accordance with the contentions he had urged in the petition. During cross examination, he stated that after the marriage, they reached his family house at 4.30 p.m. and no one has seen her having any confrontation with the petitioner. There was a reception between 5 p.m. to 8 p.m. on the said day. He further deposed that on the first night, they did not sleep together. He had gone back to Bangalore since she said she was not willing to marry him. He had gone to Bangalore at about 11-11.30 p.m. Suggestion put to him was that he had gone to Bangalore from Kannur on 29th October. He denied the suggestion that they were living as husband and wife from 26th October to 29th. He admits that there was a reception conducted by the petitioner's father on 2nd November from 4 p.m to 7-7.30 p.m. He stated that he stayed in the wife's house on 2nd and went back to Bangalore on 3rd. The suggestion from the petitioner was that he had gone back to Bangalore on 4th November.

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13. RW2 is a friend of respondent. He is a person who had attended their marriage. He speaks about what the respondent had informed him. He had come to know about the issues among the couple when he went to the respondent's house by evening on the date of marriage. He further deposed that since they could not solve the problem, he went back home by around 9 p.m. He got a call by 12 midnight. He dropped the respondent at the bus stand. Respondent also told him that if he remains there, he will be forced to commit suicide.

14. Apparently this is a case where the parties have not stayed together as husband and wife for more than a week or so. According to the petitioner, respondent went to Bangalore after a few days of marriage, came back for the reception on 2nd November and again went back on 4th November. According to the respondent, he left his house during the midnight of his marriage. He came for the reception on 2nd and went back the same night. But in the objection filed by the respondent, he had not stated that he left his house on the same day of marriage, whereas according to the petitioner, they stayed at the matrimonial home for few days. She thereafter had come to Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 Tripunithura where the reception was conducted. He attended the reception and went back to Bangalore on 4/11/2013. However, according to him, he left on the same day which he had reiterated in the evidence. The petitioner has

a case that the marriage was consummated and he had sexual relationship with her whereas the respondent denies the said fact. But it is relevant to note that, whatever be the circumstances of the marriage, it is quite unusual that the husband will leave the matrimonial home on the first day of marriage during midnight itself. The explanation offered by RW2, friend of respondent is that he had to leave on the same day or else he will be forced to commit suicide. There is controversy between the parties, as to what happened between them. According to the petitioner, they lived together for a few days in the matrimonial home and there was no difficulty. If the respondent was so much aggrieved by the actions of the petitioner from the first day of marriage after they reached the matrimonial home, what was the reason for him to come for the reception which was scheduled on 2nd November. According to him, he had come to attend the reception under severe pressure from relatives. But again his contention is that he left on the same Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 day, whereas according to the petitioner, he stayed there for a day and left only on 4th November. We are of the view that the version of the petitioner is more probable. The version of the respondent in that regard is unusual and not believable. Similarly, he denies the fact that petitioner accompanied her parents to Bangalore on 17/1/2014. It is quite usual that when the girl is given in marriage and the husband is not coming back within a few days and is not reacting properly to their enquiries, the parents of the petitioner and the petitioner would definitely go to Bangalore. Ext.A8 is a print out of booking details relating to travel made by the petitioner and her parents on 17/1/2014 and their return on 3/2/2014. Therefore, the contention that the petitioner had not come along with her parents again is not believable. At any rate, there was some sort of a counselling and nothing had taken place.

15. The allegation for divorce is that of cruelty. The respondent himself after marrying a girl, leaves her on the same day of marriage. After one week, he comes for a reception, attends the reception and leaves on the same day to Bangalore. After having entered into a wedlock with a girl, ditching her on the Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 first day of marriage itself amounts to cruelty. If at all there was any problem with the couple, he should have remained there and settled the issues one way or other. Going by the version of petitioner, he even ditched her after having sexual relationship. She has a case that his idea is to have the nuptial knot, have sex and then go like a free bird. Though there is no material to arrive at such a conclusion, still, the attitude of the respondent in ditching a girl from the first day of marriage clearly amounts to mental cruelty and the facts of the case clearly discloses the same. Under such circumstances, we are of the view that the Family Court erred in not granting divorce as sought for by the petitioner. Accordingly, we set aside the judgment passed by the Family Court in OP No.279/15. Petitioner is entitled for dissolving the marriage as sought for.

16. Now coming to the issue relating to Mat.Appeal No.1217/16 which arises from OP No.217/2015, the case had been filed for recovery of money. The allegation is that on the date of marriage, the parents of the petitioner had given her `5 lakhs as parental share which she had entrusted to the 1st respondent. The 2nd respondent is the mother and respondents 3 Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 and 4 are the siblings of 1st respondent. That apart, an amount of `5 lakhs was paid by the father of the petitioner to the 1st respondent for arranging an apartment at Bangalore and for booking a new car. That apart, a sum of `6,72,000/- was spent for a reception function at Pushpanjali Auditorium in Tripunithura. In the petition, it is further

contended that the engagement function was held on 21/7/2013 at Bakel International Hotel at Kanhangad expending `62,400/-. The wedding cards for the marriage was printed on payment of `23,000/-, photographs and videos for the function were taken by expending `1,25,000/-, towards decoration, refreshment and rent, `2,96,000/- has been spent, `75,000/- was spent for make up of the bride by a beautician, `2,40,000 was spent for purchase of garments and accessories, and for pooja, nadaswaram and stage decoration `65,000/- was expended. The auditorium was booked by spending `40,000/- and the brother and parents of the petitioner incurred an expenditure of `87,000/-. About 1200 persons participated in the function and therefore it is alleged that even at the time of marriage, the 1st respondent had an intention to cheat the petitioner. The marriage expenses came to `14,61,000/- excluding beautician, Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 engagement and other expenses which were met by the parents of the petitioner.

17. In the objection filed by the respondents, they denied the aforesaid allegations. In para 11, they denied that the petitioner had expended so much amount. Further, it is contended that, if at all any amount has been spent, the respondent has no obligation to pay the same. They also denied the allegation of accepting `10 lakhs from the petitioner on two occasions.

18. The evidence for payment of amount consists of Ext.A2, a loan account statement issued by Standard Chartered Bank to PW2 and Ext.A5, a copy of bank account statement issued by State Bank of India to PW2. On the other hand, respondent produced Ext.B2, a copy of bank account statement issued from Union Bank of India. Ext.A2 would show that PW2 had taken a loan of `5 lakhs on 10/7/2013 and the loan was closed on 17/1/2015. Ext.A3 is an extract of Provident Fund statement of PW2 as on 7th July, 2016. It is seen that an amount of `5 lakhs had been withdrawn. Ext.A5 relates to statement of account from 1/6/2013 to 30/11/2013. The statement of accounts would show that, on 12/7/2013, there is a credit of `5 lakhs, on 20/7/2013, Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 there is credit of `5 lakhs and on 29/8/2013, there is a credit of `4,57,140/-. It is also evident that `3 lakhs was withdrawn on 23/7/2013 and `5,75,000/- was withdrawn on 21/10/2013 as bulk amounts.

19. Ext.B1 is a final report in Crime No.821/2014 of the Additional Chief Judicial Magistrate Court, Ernakulam. Case had been chargesheeted against the respondent under Section 498A of IPC. Ext.B2 is the statement of account in relation to an account of the respondent issued by Union Bank of India.

20. From the facts borne out from the records, it is rather clear that the respondent had virtually deserted the petitioner after living with her for a few days. Under such circumstances, he is liable to compensate her for the money he had taken from her parents, if any, and also for the expenditure incurred by them for conducting the marriage.

21. The first question to be considered is whether as alleged by the petitioner, an amount of `5 lakhs was paid at the time of marriage and a further amount of `5 lakhs was paid while they had gone to Bangalore. The evidence adduced by the petitioner, especially Ext.A5, would show that, at or about the Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 time of marriage, he had

withdrawn certain amounts from the Bank account. The marriage was solemnized on 26/10/2013. He had taken `3 lakhs from the account on 23/7/2013 i.e., about 3 months prior to the marriage. Thereafter, a substantial withdrawal is seen made on 21/10/2013. Definitely, the debit on 21/10/2013 would have been taken for the purpose of marriage as the marriage was held on 26/10/2013. It might be a case where the money was withdrawn for payment as alleged by the petitioner or for the expenditure in connection with the marriage. In the evidence of PW2, he had stated that he availed a loan of `5 lakhs from Standard Chartered Bank on 10/7/2013 as evident from Ext.A2. Though he had stated about the expenditure he had incurred, what was the source of his income has not been stated in his affidavit except the loan of `5 lakhs availed by him. In cross examination, he states that 80 sovereigns of gold ornaments were available with them. They were accumulating the gold ornaments since 1987. Some of the gold ornaments were exchanged. He further states that in regard to expenditure of `14 lakhs, he had liquid cash and the balance amount was taken from the Bank. He states that `5,75,000/- was taken on 21/10/2013. He clarifies that Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 it is from the said amount that the marriage expenditure and the money was paid to the respondent. He further deposes that the said amount was withdrawn for payment to the respondent on 4/11/2013. He further deposed that the amount is to be paid to the couple for giving advance for purchasing an apartment and to buy a new car. He also stated that all the expenses of marriage will not be borne out in Ext.A5. It could therefore be seen that PW2 could not possibly explain the payment of `5 lakhs on the date of marriage and the further amount of `5 lakhs on 4/11/2013. Of course, evidence show that he had withdrawn `5,75,000/- from the Bank on 21/10/2013. Other than that, there is no withdrawal. Being an officer of a Public Sector Corporation, if at all he was giving some gift to his daughter and son-in-law, it is not possible that he would have paid cash. He would have done only through some banking arrangement. Therefore, there is no evidence to prove the fact that `5 lakhs was paid on the date of marriage or on 4/11/2013. There is evidence to show that he had taken `5,75,000/- on 21/10/2013. It might be true that such a large amount was taken for payment of dowry as well. But there is no believable proof for the same. However, taking into account Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 the factual circumstances involved in the matter, it is in evidence that PW2 had with him `5 lakhs taken as loan from Standard Chartered Bank and probably the credit of `5 lakhs on 12/7/2013 is explained. The credit dated 20/7/2013 for another `5 lakhs is on account of the loan taken from Provident Fund. From the materials made available, it could only be inferred that `5,75,000/- was taken by him from the Bank for the purpose of the marriage. That is the only substantial amount taken at the time when the marriage was about to take place. Therefore, it can be presumed that he would have spent `5,75,000/- for the purpose of marriage and for the reception that he had conducted on 2/11/2013.

22. However, taking into account the fact that the attitude of the respondent in ditching his wife within a few days is totally unconceivable, we are of the view that the petitioner should be compensated sufficiently for the breach of duty committed by the respondent. In the petition, she claimed `5 lakhs as money entrusted with the respondents at the time of marriage and `5 lakhs entrusted on 4/11/2013. Taking into account the fact that `5,75,000/- was withdrawn from the bank account on 21/10/2013, Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 though there is no proof regarding payment of the aforesaid amounts, we are of the view that petitioner can be compensated for the amount her father had spent for conducting the marriage.

Based on Ext.A5, it is rather clear that `5,75,000/- had been withdrawn from the bank account which would have been spent for the conduct of the marriage. It is probable that petitioner's father had spent other amounts also. Taking into account all the factual aspects involved in the matter, we are of the view that the respondent will have to compensate the petitioner for the liability incurred by them for conducting the marriage. We fix the approximate amount of `10 lakhs as sufficient compensation for the same. The Family Court failed to consider these aspects in the proper perspective. Dismissal of the claim was without considering the nature of evidence adduced in the matter.

23. As far as the revision petitions are concerned, it relates to interim maintenance to be paid. The evidence adduced in the case would show that petitioner/husband during the relevant time was having an annual income of around `5 lakhs. Petitioner is not employed though she is a qualified Engineer. The fact that her father is an employee of a Public Sector Corporation cannot be a Mat.Appeal Nos. 1216/2016, 1217/2016, RP(FC) No.598/16 & 24/2017 reason for denying her maintenance for her future. However, we are of the view that the direction to pay `5,000/- is reasonable, taking into account the facts and circumstances of the case and therefore there is no reason to interfere with the said judgment. It shall be open for the petitioner to approach the Family Court if there is any change in circumstances.

Accordingly, RP(FC)s are dismissed. Mat.Appeal Nos. 1216/16 and 1217/16 are allowed by setting aside the judgment of the Court below and shall stand decreed as under:-

(i) OP No.279/2015 is allowed. The marriage between the petitioner and respondent is dissolved by a decree of divorce.

(ii) OP No.217/2015 is allowed. Petitioner shall be entitled to recover an amount of `10,00,000/- (Rupees Ten lakhs only) from the 1st respondent with interest at the rate of 6% per annum from the date of petition till realisation.

Sd/-

A.M. SHAFFIQUE, JUDGE Sd/-

K.P.JYOTHINDRANATH, JUDGE Rp //True Copy// PS to Judge